

24SMCV02781 24SMCV02781

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24SMCV02781 Hearing Date: July 2, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

PATRICK BERTRANOU, an individual; and

WALKER LAND, LLC, a California limited liability company,

Plaintiff,

v.

KENNETH KAI CHANG, an individual;

BERESFORD PROPERTIES, LLC, a California limited liability company; HUI O KA

LA, LLC, a Hawaii limited liability company; and DOES 1-25, inclusive,

Defendants.

Case No.:

24SMCV02781

Hearing Date: July 2, 2026

[TENTATIVE]

order RE:

PLAINTIFFS' MOTION TO

ENFORCE SETTLEMENT AGREEMENT

BACKGROUND

This case

arises from a loan dispute. Plaintiff Patrick Bertranou (Plaintiff) alleges that he loaned \$3.5 million to defendants Kenneth Kai Chang, Beresford Properties, LLC, and Hui O Ka La La, LLC (collectively, Defendants) via oral agreement. On June 1, 2024, Plaintiff filed their Complaint against Defendants. Plaintiff alleges Defendants obtained the loan through fraudulent means and did not repay the loan. Defendants allege the loan is memorialized in an option agreement and was an investment in a condominium development property called the Ililani. (Mot., Joint Statement of the Case, p. 2.) On March 23, 2026, the parties negotiated and reached a settlement agreement to resolve the dispute.

On

June 8, 2026, Plaintiff filed the instant motion to enforce the settlement agreement and enter judgment against Defendants, alleging that Defendants have not complied with the terms of the settlement by refusing to make the required payments.

On

June 22, 2026, Defendants filed an Opposition arguing that they have performed the material terms of the settlement agreement to the extent possible.

On

June 25, 2026, Plaintiff filed a Reply.

LEGAL

STANDARD

Code of Civil Procedure section 664.6 provides "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain

jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6.) “[I]nterest accrues at the rate of 10 percent per annum on the principal amount of a money judgment remaining unsatisfied”. (Code Civ. Proc., § 685.010(a)(1).)

DISCUSSION

Plaintiff

argues that Defendants were required to pay \$4.8 million by the end of May 2026 pursuant to the terms of the settlement agreement and have not done so. (Mot., p. 5.) Plaintiff argues Defendants were also required to transfer two market rate units at the Ililani to Plaintiff pursuant to the terms of the settlement agreement and have not done so. (Ibid.) Moreover, Plaintiff argues Defendants have no valid excuse for non-performance. (Mot., p. 6.)

Defendants

argue that they have completed material obligations under the settlement agreement and matters that remain pending are either pending delivery of paperwork or in the hands of the state of Hawaii. (Opp., p. 9.) Defendants argue that with respect to the two units at the Ililani meant to be transferred to Plaintiff, they have filed requisite paperwork with the state of Hawaii to obtain the necessary tax withholding exemption and are awaiting approval. (Ibid.) Defendants argue that the delay was the result of Plaintiff’s delay in providing the necessary tax information and paperwork. (Ibid.) Defendants state that the terms of the settlement allow Defendants to satisfy the \$4.8 million balance with the transfer of six additional units at the Ililani by recording mortgages/deeds of trust, or by direct transfer. (Ibid.) Defendants argue that the paperwork necessary to effectuate direct transfer of the units is complete and should have been delivered to Plaintiff on Tuesday, June 23, 2026. (Ibid.)

In

Reply, Plaintiff argues that reason for delay in effectuating transfer of the first two units and the status of paperwork to effectuate transfer of the six additional units is irrelevant and the issue remains that Defendants have not satisfied their obligations under the terms of the settlement by the deadline. (Reply, pp. 2-3.)

The

terms of the settlement provide for the transfer of two units at the Ililani,

and \$5.5 million payment satisfied through (1) payment of \$700,000.00 upon execution, and (2) either payment of \$4.8 million balance, or transfer of six additional units at the Ililani valued at \$4.8 million within 60 days following the execution of the settlement agreement. (Mot., Exh. B, ¶¶ 2-3.) Here, 60 days from execution of the settlement agreement, dated March 20, 2026, is the end of May 2026. Defendants completed timely payment of the \$700,000 due upon execution. (Bertranou Decl., ¶ 2.) As of June 23, 2026, Defendants have delivered paperwork to Plaintiff effectuating transfer of the six additional units to satisfy the \$4.8 million balance remaining from the \$5.5 million payment. (Kim Decl., ¶¶ 3-4.) However, Plaintiff must return signed and notarized paperwork to Defendants' Hawaii counsel to complete transfer. (Kim Decl., ¶ 3.) Although paperwork has been delivered, transfer of the six units satisfying one portion of the settlement agreement has not been completed. Additionally, Defendants have still not effectuated transfer of the two original units at the Ililani pursuant to the terms of the settlement agreement. Since Defendants have failed to transfer the two original units and failed to satisfy the \$4.8 million balance by transferring six additional units, Defendants have failed to timely comply with the terms of the settlement agreement. Thus, Plaintiff's motion to enforce settlement is granted.

CONCLUSION

For the foregoing reasons, the Court GRANTS Plaintiff Patrick Bertranou's motion to enforce settlement agreement and, accordingly, will enter judgment against Defendants.

DATED: July 2, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court